

Amendment No. 1 to HB0033

Doggett

Signature of Sponsor

AMEND Senate Bill No. 218

House Bill No. 33*

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Section 40-11-115, is amended by adding the following new subsection:

(f)

(1) There is a presumption that a defendant should not be released on the defendant's personal recognizance if the defendant is charged with a felony offense that involved the use or display of a firearm and resulted in the serious bodily injury or death of the victim. As used in this subsection (f), the terms "firearm" and "serious bodily injury" mean the same as defined in § 39-11-106.

(2) If a magistrate or other official authorized to admit a defendant to bail determines that the presumption established by subdivision (f)(1) has been rebutted, then the magistrate or such official must include in the bail order written findings for each factor listed in subsection (b).

SECTION 2. This act takes effect July 1, 2025, the public welfare requiring it.